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THE SPIRIT OF THE LAW

The best moments in Indian judicial history came when the courts looked not at the law but at the first principles of justice—at the oft-unwritten credo that underlies the Constitution

IN **a constitutional democracy governed by the rule of law,** an independent judiciary has a critical role to play. In a country as diverse and heterogeneous as India, and with a career spanning close to 73 years, the Indian judiciary's role has been varied and multi-faceted. It is thus a rather difficult task to compile a list of "10 of the most significant judgments" in Indian constitutional history, as no criterion of selection will be fine-grained enough to command universal agreement. This list, therefore, ought to be treated as an invitation to a conversation, and not a verdict (verdicts, after all, are the business of courts!).

I believe constitutions and constitutionalism are at their best when they interrogate power relations—both state and social—and seek to democratise public and private power. My list brings together 10 judgments that have done that in a rigorous and judicious manner, and therefore, from my perspective, are the